BOTBHAI SERVICE AGREEMENT · V1.0 · 16 OCT 2026

Agreement between Kalpa Labs and your salon

Plain-English terms. Please read them; ask us about anything that isn't clear.

1. WHO IS AGREEING

Kalpa Labs, a sole proprietorship in Hyderabad, Telangana, Udyam UDYAM-TS-02-0382711 ("we"), and **the salon** named below ("you"): _____, owner _____, address _____.

2. THE SERVICE

BotBhai answers your customers on your WhatsApp Business number (and, if your plan includes them, your website chat and phone line): prices, questions, bookings, reschedules, reminders and review requests, in English, Telugu and Hindi. Your plan: _____. Plans and prices: Starter pack ₹999 one-time, no monthly fee; Lite ₹1,999 + ₹999/month; Standard ₹2,999 + ₹1,499/month; Pro ₹9,999 + ₹4,999/month.

3. FEES AND PAYMENT

1. Setup fee: 50% on signing, 50% at go-live. Monthly fee: paid each month in advance, by UPI, against our invoice. Annual prepay: 2 months free.
2. We are not registered under GST, so our invoices carry no GST. If that changes, we will tell you 30 days before any GST is added.
3. WhatsApp's own message fees and any ad spend are paid by you directly to Meta from your own account. We never add a markup to them.
4. No per-staff fee: the price is the same however many people work in your salon. The Starter pack is a one-time fee with nothing monthly.

4. GO-LIVE PROMISE

We go live within 10 days of receiving your price list and access to your WhatsApp Business account. If we miss that, we return your setup advance in full.

5. STOPPING

There is no lock-in. Send us one WhatsApp to stop; the monthly fee stops from the next month. The setup fee isn't refundable after go-live. We may stop the service with 30 days' notice, or at once if fees are unpaid for 30 days or the service is used for spam.

6. YOUR PART

1. You own your WhatsApp Business account and keep a payment method on it with Meta.
2. You message only customers who have contacted you or agreed to hear from you. Offers go only to customers who replied OFFERS. You follow WhatsApp's Business Messaging Policy.
3. You keep your prices, timings and holidays correct, and tell us when they change.

7. YOUR CUSTOMERS' DATA (DPDP ACT 2023)

Your salon decides why and how your customers' personal data is used, so you are the **Data Fiduciary**. We process it only on your behalf, so we are your **Data Processor** under section 8 of the Digital Personal Data Protection Act, 2023. This section is the "valid contract" that section asks for. We will:

1. **Use it only to run your service**, as this agreement and your written instructions say. We tell you at once if we can't follow an instruction. We never sell it, never use it for our own marketing, and never share it except as below.
2. **Keep it safe:** encrypted connections, access only for the people who run your service (each bound to keep it confidential), access logs kept for 1 year, and the database locked so no web page can read it.
3. **Use only these sub-processors**, and tell you 10 business days before adding one, so you can object or stop:

SUB-PROCESSOR	WHAT FOR
Meta Platforms (WhatsApp Business Cloud API)	Sends and receives your WhatsApp messages
Supabase	Database: bookings, leads, messages
Netlify	Runs the bot and serves your pages
Groq	Turns voice notes into text (if you use voice notes)
Sarvam AI	Telugu/Hindi voice (Pro voice receptionist only)

4. **Tell you about any breach** without delay, and within 24 hours of finding it, with what happened, what data, and what we're doing. That gives you time to inform your customers and the Data Protection Board (the Rules ask for a detailed report within 72 hours).
5. **Help you answer customers** who ask to see, correct or erase their data, or who withdraw consent. STOP on WhatsApp is honoured automatically.
6. **Keep it only as long as needed:** chat messages for 180 days, bookings and leads while you are our client, unless you ask for less.
7. **When you stop:** on request we send you an export (Excel) within 7 days, then delete your customers' data within 30 days. We keep only what the law makes us keep, such as our invoices to you.

8. CONFIDENTIALITY

Each of us keeps the other's business information private, during this agreement and after it. We may share anonymised results only with your written yes (no names or numbers) as case studies.

9. WHAT WE CAN AND CAN'T PROMISE

We set up and run BotBhai with care and fix problems quickly. We can't promise a number of bookings or income, and we aren't responsible for outages or rule changes at WhatsApp, Meta or other providers. Neither of us is liable for indirect losses. Our total liability is limited to the fees you paid us in the 3 months before the claim, except for breaking section 7 through our own fault.

10. LAW AND DISPUTES

Indian law applies. We will first try to settle any dispute by talking for 15 days. After that, courts in Hyderabad decide.

For the salon: name, signature, date

For Kalpa Labs: name, signature, date

Structure and some wording adapted from the Common Paper Cloud Service Agreement v2.1 and Data Processing Agreement v1.1 (commonpaper.com/standards), licensed CC BY 4.0. Changes: shortened, rewritten in plain English for India and the DPDP Act 2023.